the judge's authority under Rule 29 is designed to provide additional protection to a defendant by filtering out deficient prosecutions, the defendant's interest in such protection is essentially identical both before the jury is allowed to come to a verdict and after the jury is unable to reach a verdict: In either case, the defendant has neither been condemned nor exculpated by a panel of his peers and, in the absence of intervention by the trial judge, his vindication must await further action by a jury.

We thus conclude that judgments under Rule 29 are to be treated uniformly and, accordingly, the Double Jeopardy Clause bars appeal from an acquittal entered under Rule 29 (c) after a jury mistrial no less than under Rule 29 (a) or (b). *United States* v. *Sanford,* 429 U. S. 14 (1976), does not dictate a contrary result. In *Sanford,* a jury trial ended in the declaration of a mistrial. A judgment of acquittal was never entered. Some four months later, with the second trial well into the preparatory stage, the trial court dismissed the prosecution's indictment. Because the dismissal "occurred several months after the first trial had ended in a mistrial, but before the retrial of respondents had begun," *id.,* at 16, the Court characterized the judge's dismissal as "a pretrial order," *ibid.,* and concluded that its appealability was governed by *Serfass* v. *United States,* 420 U. S. 377 (1975). The Court's linking of *Sanford* with *Serfass* highlights the distinctiveness of an acquittal under Rule 29 (c). In *Serfass* the Court carefully distinguished between appeal of a pretrial order and appeal of " 'a legal determination on the basis of facts adduced at the trial relating to the general issue of the case.' " 420 U. S., at 393, quoting *United States* v. *Sisson,* 399 U. S., at 290 n. 19. A Rule 29 acquittal, however, falls squarely within the latter category: By the very language of

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Government) and, of course, can be qualified by authority granted the trial judge under Rule 29.